

22CMCV00077 22CMCV00077

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-12

Motion: DEFENDANT/CROSS-COMPLAINANT WILSON RICHARDSON'S MOTION FOR ATTORNEY'S FEES DATE:
August 12, 2026 TIME: 8:30 A.M.

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Case Number: 22CMCV00077 Hearing Date: August 12, 2026 Dept: E

SUPERIOR COURT OF THE STATE
OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

CHESPAY,
LLC,

Plaintiff,

vs.

WILSON RICHARDSON,

Defendant.

AND RELATED CROSS-COMPLAINT

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CASE

NO: 22CMCV00077

[TENTATIVE] ORDER RE: DEFENDANT/CROSS-COMPLAINANT
WILSON RICHARDSON'S MOTION FOR ATTORNEY'S FEES

DATE: August 12, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

Wilson Richardson

Responding Party: Plaintiff

Chespay, LLC

Notice: Ok

Tentative Ruling: Defendant's

Motion for Attorney's Fees is GRANTED in the reduced total amount of \$75,055.00.

I.

BACKGROUND

This

action arises from the termination of an employment contract, and related breach of contract.

On March 23, 2022, Plaintiff Chespay, LLC

("Plaintiff" or "Chespay") filed its Complaint against Defendant Wilson Richardson, ("Defendant" or "Richardson") asserting causes of action for (1) Breach of Contract; and (2) Preliminary and Permanent Injunction.

On

May 11, 2022, Defendant filed his Cross-Complaint against Chespay and Roes 1-10, alleging causes of action for: (1) Retaliation; (2) Failure to Pay All Wages Due and Owing at the Time of Termination (Lab. Code § 203); (3) Unpaid Wages; (4) Failure to Pay Overtime Compensation; and (5) Failure to Pay Missed Meal and Rest Compensation.

A

jury trial commenced on February 23, 2026 and concluded on February 27, 2026 with the jury rendering a defense verdict on Chespay's Complaint and a verdict in favor of Plaintiff on Richardson's Cross-Complaint. (See Minute Order, 2/27/26.) Richardson prevailed only on the Cross-Complaint's Second Cause of Action for Failure to Pay All Wages Due and Owing at the Time of Termination. (Id.)

On March 9, 2026, the Court entered a Judgement on Special Verdict in accordance with the jury's findings and ordering judgment against Plaintiff Chespay, LLC on the Complaint and in favor of Cross-Complainant Wilson Richardson on the Cross-Complaint. (See Judgment on Special Verdict, filed 3/9/25.) In all, Richardson was awarded damages in the sum of \$6,374.44. (Id.)

On April 15, 2026, Richardson filed the instant Motion for Attorney's Fees.

On July 30, 2026, Chespay filed an Opposition.

On August 3, 2026, Richardson filed a document titled "Objection to Plaintiff and Cross-Defendant Chespay, LLC's Untimely Opposition to Motion for Attorney Fees." [1] On the same date Chespay filed a Reply.

On August 7, 2026, Chespay filed a document titled
"Plaintiff and Cross-Defendant Chespay, LLC's Response to Defendant and
Cross-Complainant Wilson Richardson's Objection to Plaintiff's Opposition to
Motion for Attorney Fees.[2]

II.

ANALYSIS

A.

Legal

Standard

"Except as otherwise expressly
provided by statute, a prevailing party is entitled as a matter of right to
recover costs in any action or proceeding." (Code Civ. Proc. § 1032(b).) And a
"prevailing party" is defined to include "the party with a net monetary
recovery, a defendant in whose favor a dismissal is entered, a defendant where
neither plaintiff nor defendant obtains any relief, and a defendant as against
those plaintiffs who do not recover any relief against that defendant." (Id.,
at § 1032(a)(4).)

Costs recoverable under Section 1032

are restricted to those that are both reasonable in amount and reasonably
necessary to the conduct of litigation. (Code Civ. Proc. §§ 1033.5(c)(2), (3).)
And a party is entitled to recover attorney's fees, as costs, when authorized
by contract, statute, or by law. (Id. at §§ 1033.5(a)(10)(A)-(C).)

"Attorney's fees allowable as costs pursuant to subparagraph (A) ... of paragraph
(10) of subdivision (a) [by contract] shall be fixed either upon a noticed
motion or upon entry of a default judgment, unless otherwise provided by
stipulation of the parties." (Id. at § 1033.5(c)(5)(A).)

"In any action brought for the
nonpayment of wages, fringe benefits, or health and welfare or pension fund
contributions, the court shall award reasonable attorney's fees and costs to
the prevailing party if any party to the action requests attorney's fees and
costs upon the initiation of the action." (Labor Code § 218.5(a).) This section
does not apply, however, to an employer's failure to pay minimum wages or
overtime wages pursuant to Labor Code section 1194. (Id., § 218.5(b).)

B.

Discussion

Defendant/Cross-Complainant Richardson

moves the Court for an award of attorney fees in the amount of \$130,380.00, arguing that he was the prevailing party because the jury returned a defense verdict on Plaintiff's Complaint and a Plaintiff's verdict on his Cross-Complaint. Richardson argues the fees sought are reasonable given the complexity and duration of this litigation and fee awards in wage and hour cases need not be proportional to the damages recovered.

In opposition, Chespay argues Richardson's motion should be denied because Richardson does not identify which attorney fees he incurred in prosecuting the only claim on which he prevailed. Chespay also argues that if the Court awards fees, the Court should apportion any award and reduce the fee award to account for Richardson's limited success. Chespay also argues that the Court should reduce the fee award to remove block billing, clerical tasks, vague time entries and travel time.

1.

Richardson is the Prevailing Party

The term "prevailing party" under Labor Code § 218.5 is not defined by the definition in Code of Civil Procedure § 1032. (*Sharif v. Mehusa, Inc.* (2015) 241 Cal.App.4th 185, 192 ("The courts have repeatedly rejected the contention that the prevailing party definitions in section 1032, subdivision (a)(4) should be automatically applied in cases where the authorizing attorney fees statute does not define prevailing party. Prevailing party status should be determined by the trial court based on an evaluation of whether a party prevailed on a practical level including the extent to which each party has realized its litigation objectives." (internal quotations omitted).)

As to the Complaint, Richardson is undoubtedly the prevailing party. The jury returned a defense verdict, meaning that Richardson prevailed on a practical level and realized his litigation objectives. As to the Cross-Complaint, Richardson is the prevailing party albeit with limited success as he prevailed only on his Second Cause of Action. However, "[w]here there are multiple claims alleged in a complaint, a party need not prevail on all of the claims in order to qualify as a 'prevailing' party under section 218.5, but may seek fees on

only those claims to which section 218.5 applies.” (Ramos v. Garcia (2016) 248 Cal.App.4th 778, 786 (“Ramos”)(citation omitted).) And Chespay makes no argument that Richardson is not the prevailing party, instead focusing its arguments on apportionment and fee reduction.

2.

Apportionment

The parties contest whether the fees must be apportioned given that Richardson asserted causes of action for which no attorney fees award is available and prevailed only on his Second Cause of Action (for which an award of attorney fees is available). Quoting Ramos, *supra*, Chespay argues that Plaintiff “may seek fees only on those claims to which [Labor Code] section 218.5 applies.” (Opp., p. 8:14.) And quoting Aleman v. AirTouch Cellular (2012) 209 Cal.App.4th 556 Chespay contends that “the trial court must determine the amount of reasonable attorney fees awardable . . . apportioning fees incurred for the separate causes of action as appropriate.” (Id., p. 8:17-18.) On the other hand, Richardson argues that “a court need not apportion fees where the claims for which fees are recoverable and those for which they ‘are not so inextricably intertwined that even an experienced attorney could not divide the hours expended on a claim-by-claim basis.’” (Reply, p. 3:20-23 (quoting Heppler v. J.M. Peters Co. (1999) 73 Cal.App.4th 1265, 1297(“Heppler”).)

Where a plaintiff has alleged multiple causes of action and is statutorily entitled to fees with respect to only one or fewer than all of the claims, the trial court may apportion the attorney's fees. (See Cruz v. Fusion Buffet, Inc. (2020) 57 Cal.App.5th 221, 235 (“Cruz”).) However, attorney's fees need not be apportioned where the claims involve either common factual or legal issues. (See, e.g., Reynolds Metals Co. v. Alperson (1979) 25 Cal.3d 124, 129-130 (“Attorney's fees need not be apportioned when incurred for representation on an issue common to both a cause of action in which fees are proper and one in which they are not allowed”).) “Where fees are authorized for some causes of action in a complaint but not for others, allocation is a matter within the trial court's discretion.” [Citation.] Further, as the one who has ‘heard the entire case,’ it is the trial court who is ‘in the best position to determine whether any further allocation of attorney[’s] fees [i]s required or whether the issues were so intertwined that allocation would be impossible.’ [Citation.]” (Cruz, *supra*, 57 Cal.App.5th at p. 235.)

The Court does not find that the issues presented by Richardson's claims are so intertwined that allocation would be impossible. Richardson prevailed only on his Second Cause of Action for Failure to Pay All Wages Due and Owing at the Time of Termination, which required nothing more than proof of: (1) the date Richardson ceased work; (2) that wages were due at the time Richardson ceased work; and (3) that those wages were not paid.[3] Richardson's argument that his Second Cause of Action required discovery of information that may have overlapped with his other claims and could not have been easily parsed out in the discovery or billing process is not determinative. "The recognized barrier to segregation for purposes of calculating fee awards is inextricably intertwined issues. Thus, although time-keeping and billing procedures may make a requested segregation difficult, they do not, without more, make it impossible." (Heppler, supra, 73 Cal.App.4th at p. 1297 (quoting Diamond v. John Martin Co. (9th Cir. 1985) 753 F.2d 1465, 1467.)

Although the Court finds that allocation of fees in this instance is not an impossibility, the Court does not find persuasive Chespay's argument that the entire fee request should be denied simply because Richardson did not apportion fees in his request. (See Opp., pp. 7:16-9:27.) As is noted above, Plaintiff is the prevailing party and entitled to an award of his attorney fees. As to apportionment, the Court is equipped to do so on its own.

3.

Richardson's Requested Fees

Richardson requests an award of attorney fees in the total amount of \$130,380.00, consisting of 217.3 hours at attorney A.J. Glassman's ("Glassman") hourly billing rate of \$600.00 per hour for work performed from April 2022 through March 2026. (Glassman Decl., ¶¶ 5-7, Exh. A.)

i.

Reasonableness of Glassman's Hourly Rates

In connection with his motion, Glassman declares that his customary and standard hourly rate for matters of this type is \$600/hr. (Glassman Decl., ¶ 6.) Glassman attests that he has maintained an active litigation practice in the Los Angeles area for over 31

years with a “substantial emphasis on employment and civil matters” and has “handled numerous wage-and-hour, breach of contract, and related civil cases in Los Angeles Superior Court [handling] easily over 1000 cases and [trying] nearly 40 trials/arbitrations to verdict.” (Id., ¶ 2.) Glassman argues that his hourly rate is consistent with the prevailing market rate charged by attorneys of comparable experience and skill for similar work in the Los Angeles metropolitan area. (Id., ¶ 6.)

Chespay does not contest Glassman’s “significant experience” but contests that Glassman’s hourly rate is reasonable, arguing that the case is not complex. (Opp., p. 18:21.) Chespay argues that this matter presented no novel or difficult questions of law, required limited discovery, and did not require extensive motion practice.

Chespay further argues that Richardson presented no affidavits of other counsel testifying to the reasonableness of his \$600/hr rate and compares Glassman’s rate to Plaintiff’s counsel Manuel Duran’s rate of \$350/hr rate, arguing that Duran’s lower rate is “a more reasonable rate for a wage and hour case of this complexity.” (Id., p. 19:3-10.)

In its review of the docket, the Court notes that Glassman attested to an hourly law and motion rate of \$350/hr in this matter in a declaration filed in support of Richardson’s Motion to Compel Responses to Requests for Production, Set Two. (See Glassman Decl. ISO Motion to Compel Responses to RPD, Set Two, filed 1/5/23, ¶ 13.) While two years admittedly has passed since Glassman’s January 2023 declaration attesting to his \$350/hour rate, (1) Glassman has made no attestation as to why his current rate is \$600 as opposed to the \$350/hr rate attested to in January 2023 – a \$250/hr (over 70%) increase over the course of approximately 3 years; and (2) Glassman has made no indication that that time entries submitted in Exhibit A to his declaration which are for dates prior to January 2023 are billed at anything other than the now-attested \$600/hr rate when those rate should be at \$350 (or lower extrapolating the post-January 2023 over 70% increase to previous years).

In accordance with the above, the Court reduces Glassman’s rate as follows:

(1)

For

all dates prior to January 31, 2023, the allowed hours will be at a billed rate

of \$350/hr.

(2)

For

all dates after February 1, 2023, the allowed hours will be at a billed rate of \$450/hr.

ii.

Reasonableness of Glassman's Billed Hours

The

prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson v. Fleetwood Travel Trailers of California Inc., (2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees "is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him]." (Levy v. Toyota Motor Sales, USA, Inc., (1992) 4 Cal.App.4th 807, 816.) Therefore, if the "time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Nightingale v. Hyundai Motor America, (1994) 31 Cal.App.4th 99, 104.)

The

billing records attached to Glassman's declaration "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396 ("Horsford").)

Accordingly, the burden shifts to Chespay

to present specific objections to particular time entries by providing specific evidence necessary to challenge the accuracy and reasonableness of the hours charged. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563-564 ("Premier")) ("In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice") (emphasis added).)

Chespay makes 161 specific
objections. Having reviewed Chespay's objections, the Court finds the following
objections are such that an adjustment is required:[4]

No.

Date

Entry

Determination

Time

(hrs)

Billed Allowed

3

5/8/22

Prepared

Answer and cross-complaint, emailed to client for review

Block

billed between Answer (for which no attorney fees are recoverable) and cross-complaint

3.9

1.1

28

1/5/23

Drafted

and filed motions to compel discovery responses to Request to Produce Documents,
Set Two

Fees

for this motion were already considered by the Court and awarded via Richardson’s Motion to Compel. (See Minute Order, 2/2/23.)

3.3

0

30

1/25/23

Review
of Opposition to motion to compel, drafted, e-filed and mailed reply brief

Fees
for this motion were already considered by the Court and awarded via Richardson’s Motion to Compel. (See Minute Order, 2/2/23.)

1.9

0

68

3/4/24

Prepared
for and attended depositions of former Chespay Employees

No
indication as to how former employee deposition correlates to Second Cause of Action.

4.4

0

76

5/20/24

Drafted

and emailed expert demand for exchange to counsel

Time

was previously billed on 7/4/23 for "Drafted and mailed Expert Demand for Exchange"

.3

0

110

2/21/25 to 2/22/25

Review

of Motion for Summary Adjudication [and draft documents in opposition]

Motion

for Summary Adjudication filed by Chespay encompassed only Chespay's First Cause of Action (See MSA, filed 12/30/24.)[5]

12.2

0

111

2/23/25

Review

of emails to and from client re declaration in opposition of MSJ and finishing depositions, telephone call with client re same

Motion

for Summary Adjudication filed by Chespay encompassed only Chespay's First Cause of Action (See MSA, filed 12/30/24.)

.7

0

112

2/24/25

E-filed

and emailed MSA to court and counsel

Motion

for Summary Adjudication filed by Chespay encompassed only Chespay's First Cause of Action (See MSA, filed 12/30/24.)

.2

0

114

3/13/25

Drafted

and served Expert Designation and deposition notices

No

experts testified or were required for Richardson's Second Cause of Action

.4

0

123

5/22/25

Travel

to and from court for final status conference, review of text messages to and from client re trial continuance

Glassman's

office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton plus the time spent at a final status conference.

5.0

3.0

134

9/25/25

Travel

to and attended Final Status Conference

Glassman's

office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton plus the time spent at a final status conference.

5.2

3.0

138

11/24/25

Travel

to and from and attended Final Status Conference, e-filed Notice to Appear at trial, emailed fee waiver forms to client

Glassman's

office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton plus the time spent at a final status conference.

4.2

3.0

148

2/13/26

Travel

to and from and attended Final Status Conference, reviewed Chespay's jury instructions and made revisions, email to counsel re same

Glassman's

office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton plus the time spent at a final status conference.

4.4

3.0

153

2/23/26

Travel

to and from and attended trial, prepared for next day

Glassman's

office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton. Trial time is reduced to account for the limited time spent on Richardson's Second Cause of Action.

11.0

5.0

154

2/24/26

Travel

to and from and attended trial, prepared for next day

Glassman's

office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton. Trial time is reduced to account for the limited time spent on Richardson's Second Cause of Action.

11.0

5.0

155

2/25/26

Travel
to and from and attended trial, prepared for next day

Glassman's
office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton. Trial time is reduced to account for the limited time spent on Richardson's Second Cause of Action.

10.0

4.0

156

2/26/26

Travel
to and from and attended trial, prepared for next day

Glassman's
office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton. Trial time is reduced to account for the limited time spent on Richardson's Second Cause of Action.

11.0

5.0

157

2/27/26

Travel

to and from and attended trial, prepared for next day

Glassman's

office was at all times located in Woodland Hills. Time billed exceeds travel time from Woodland Hills to Compton. Trial time is reduced to account for the limited time spent on Richardson's Second Cause of Action.

8.5

3.0

Totals:

97.6

35.1

In

accordance with the above, the Court reduces Richardson's time by a total of 62.5 hours from 97.6 contested hours to 35.1 allowed hours. Combining the above reductions with the hourly rates previously set, the Court calculates:

(1)

Time prior

to January 31, 2023 (at \$350/hr): $22.1\text{hrs} \times \$350/\text{hr} = \$7,735.00$, plus

(2)

Time

after February 1, 2023 (at \$450/hr): $149.6\text{ hrs} \times \$450/\text{hr} = \$67,320.00$,

for a grand total of \$75,055.00.

III.

CONCLUSION

Richardson's Motion for Attorney's

Fees is GRANTED in the reduced total amount of \$75,055.00.

[1] Richardson's objection misapplies

Code of Civil Procedure § 1010.6(a)(3)(B).

Code of Civil Procedure § 1005(c) specifically provides that, "[n]otwithstanding any other provision of this section, all papers opposing a motion and all reply papers shall be served by personal delivery, facsimile transmission, express mail, or other means consistent with Sections 1010, 1011, 1012, and 1013, and reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day after the time the opposing papers or reply papers, as applicable, are filed." (Code Civ. Proc. § 1005(c)(emphasis added).) Richardson's objection is DENIED.

[2] The Code of Civil Procedure

provides no provision for filing a response to a Reply. (See Code Civ. Proc. § 1008(b)(Allowing for a motion, opposition and reply – nothing further).) Because Chespay's August 7, 2026 filing was not made in accordance with the Code of Civil Procedure, the Court exercises its discretion to refuse to consider Chespay's August 7 pleading. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

[3] The discrete question posed by

Plaintiff's Second Cause of Action involved payment for work performed for a little over two weeks in December 2021.

[4] Objection number in table

correspond to objections set forth in Exhibit A attached to the Declaration of Jonathan S. Goldstein in Support of Plaintiff and Cross-Defendant Chespay, LLC's Opposition to Defendant and Cross-Complainant Wilson Richardson's Motion for Attorney Fees.

[5] See also Minute Order, 3/13/25, p.

2 ("Plaintiff moves for summary adjudication of its First Cause of Action for Breach of Contract.")